

Unofficial 20: Document

Recording requested by:

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Ga:

Quality Loan Service Corporation
When recorded mail to:
Quality Loan Service Corporation
2763 Camino Del Rio South
San Diego, CA 92108

TS No.: AZ-25-1016907-NJ
Order No.: FIN-25007001

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NOTICE OF DEFAULT AND FORECLOSURE SALE

WHEREAS, on **6/25/2010**, a certain Deed of Trust was executed by John Duda, a Married Man, as his Sole and Separate Property, as trustor(s), in favor of **Bank of America, N.A., a National Banking Association**, as beneficiary, and was recorded on **6/30/2010 Instrument No. 20100559700** in the Office of the County Recorder of **MARICOPA County, AZ**; and

WHEREAS, the Deed of Trust was insured by the United States Secretary of Housing and Urban Development (the Secretary) pursuant to the National Housing Act for the purpose of providing single family housing; and

WHEREAS, the Deed of Trust is now owned by the Secretary, pursuant to an Assignment recorded on **7/17/2019** as Instrument Number **20190538744** of **MARICOPA County, AZ**; and

WHEREAS, a default has been made in the covenants and conditions of the Deed of Trust in that:

The Borrower has died and the Property is not the principal residence of at least one surviving Borrower.

WHEREAS, by virtue of this default, the Secretary has declared the entire amount of the indebtedness secured by the Mortgage to be immediately due and payable and sufficient payment has not been made as of the date of this notice; and \$

WHEREAS, the total amount due as of 3/24/2026 is \$601,252.62.

NOW THEREFORE, pursuant to the powers vested in me by the Single Family Mortgage Foreclosure Act of 1994, 12 U.S.C. 3751 et seq., by 24 CFR Part 27 subpart B, and by the Secretary's designation of me as Foreclosure Commissioner, notice is hereby given that on **4/28/2026 at 12:00PM** local time, all real and personal property at or used in connection with the following described premises will be sold at public auction to the highest bidder:

Commonly known as:

16837 W Capitol Reef Ct, Surprise, AZ 85387

Assessor's parcel number: 232-46-450
Located in: City of Surprise, County of MARICOPA, AZ

More particularly described as: Lot 58, Sun City Grand - Escalante, according to the Plat of Record in the Office of the County Recorder of Maricopa County, Arizona, recorded in Book 685 of Maps, page 33, and Certificate of Correction recorded at Recorder's No. 2004-715001 of Official Records.

The sale will be held In the courtyard by the main entrance of the Superior Court Building, located at 201 West Jefferson, Phoenix, AZ 85003

The Secretary of Housing and Urban Development will bid \$607,654.88

There will be no proration of taxes, rents or other income or liabilities, except that the purchaser will pay, at or before closing, his prorata share of any real estate taxes that have been paid by the Secretary to the date of the foreclosure sale.

When making their bids, all bidders except the Secretary must submit a deposit totaling approximately \$60,765.48 in the form of certified check or cashier's check made out to the Secretary of HUD. A deposit need not accompany an oral bid. If the successful bid is oral, a deposit of \$60,765.48 must be presented before the bidding is closed. The deposit is nonrefundable. The remainder of the purchase price must be delivered within 30 days of the sale or at such other time as the Secretary may determine for good cause shown, time being of the essence. This amount, like the bid deposits, must be delivered in the form of a certified or cashier's check. If the Secretary is the highest bidder, he need not pay the bid amount in cash. The successful bidder will pay all conveyancing fees, all real estate and other taxes that are due on or after the delivery date of the remainder of the payment and all other costs associated with the transfer of title. At the conclusion of the sale, the deposits of the unsuccessful bidders will be returned to them.

The Secretary may grant an extension of time within which to deliver the remainder of the payment. All extensions will be for 15-day increments for a fee of \$500.00, paid in advance. The extension fee shall be paid in the form of a certified or cashier's check made payable to the Secretary of HUD. If the high bidder closes the sale prior to the expiration of any extension period, the unused portion of the extension fee shall be applied toward the amount due.

If the high bidder is unable to close the sale within the required period, or within any extensions of time granted by the Secretary, the high bidder may be required to forfeit the cash deposit or, at the election of the foreclosure commissioner after consultation with the HUD representative, will be liable to HUD for any costs incurred as a result of such failure. The Commissioner may, at the discretion of the HUD representative, offer the property to the second highest bidder for an amount equal to the highest price offered by that bidder.

There is no right of redemption, or right of possession based upon a right of redemption, in the trustor(s) or others subsequent to a foreclosure completed pursuant to the Act. Therefore, the Foreclosure Commissioner will issue a Deed to the purchaser(s) upon receipt of the entire purchase price in accordance with the terms of the sale as provided herein. HUD does not guarantee that the property will be vacant.